

“For venue to be proper in a county other than the county in which a defendant resides, the action must fall within a statutory exception.” (*Fontaine, supra*, 175 Cal.App.4th at 837.)

Defendants contend that venue in Orange County is improper because both Defendants reside in Los Angeles County, have resided in Los Angeles County during all relevant times, and their principal place of business is in Los Angeles County. (Decl. of Mann, ¶¶2-3; Decl. of Trinidad, ¶¶ 2-3). Defendants also contend that the legal services at issue in the Complaint were performed primarily in Los Angeles County, and that the retainer agreements were executed in Defendants’ Los Angeles office. (Decl. of Mann, ¶¶ 4-5, Decl. of Trinidad, ¶¶4-5).

Plaintiffs contend that one of the three lawsuits that Defendants litigated, which is the subject of Plaintiffs’ malpractice and other claims, was venued in Orange County and litigated in Orange County (*Usman Chowdhry v. Franz Gerald Andre Tissera, Phase9Motorsports, Inc., et al.*, Orange County Superior Court Case No. 30-2022-01258301-CU-FR-CJC).

Plaintiffs also contend that the retainer agreement was signed in Orange County. Plaintiff Franz Tissera submitted a declaration wherein he declared the following:

“In or around May 2022, I, together with my co-plaintiffs Frederick Tissera and Angela Chisholm, retained Defendant Jeff A. Mann to represent us, along with Phase9Motorsports, Inc., in *Usman Chowdhry v. Franz Gerald Andre Tissera, Phase9Motorsports, Inc., et al.*, Orange County Superior Court Case No. 30-2022 01258301-CU-FR-CJC (the “Usman action”).” (Decl. of Tissera, ¶ 4). “I recall receiving a copy of the fee agreement from Mr. Mann and taking it with me to my residence in Anaheim, Orange County, California, so that it could be signed by me and my siblings, Frederick Tissera and Angela Chisholm.” (Decl. of Tissera, ¶ 5). “On or about May 19, 2022, I signed my portion of the fee agreement in Anaheim, Orange County, California. Frederick Tissera and Angela Chisholm also signed their respective portions of the agreement in Anaheim, Orange County, California, at or around the same time.” (Decl. of Tissera, ¶ 6). “After the agreement had been signed by all three of us, I personally returned the signed copy to Mr. Mann at his law office in Los Angeles.” (Decl. of Tissera, ¶ 7). “I do not presently recall whether Mr. Mann had already signed the fee agreement before he provided it to me or whether he signed it after I returned the executed copy to his office. I do recall that the client signatures of myself, Frederick Tissera, and Angela Chisholm were placed on the agreement in Orange County before I personally returned the signed agreement to Mr. Mann.” (Decl. of Tissera, ¶ 8).

Plaintiffs cite to the portion of Code Civ. Proc. § 395, subd. (a) which provides that if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary.

According to Plaintiffs, Defendants cannot establish that Orange County is an improper venue because the contracts were executed in Orange County and

one of the three lawsuits required Defendants' services to be rendered in Orange County.

In response, Defendant cites to *Cholakian & Associates v. Superior Court* (2015) 236 Cal.App.4th 361, where the court held that an action for legal malpractice, bad faith, and breach of contract is personal, transitory, and that the proper county is the county in which the defendants or some of them reside. (*Id.* at 368). *Cholakian*, however, does not explicitly address whether a cause of action for legal malpractice is within the scope of the contractual obligation exception. Neither party identifies authority that addresses this issue.

The California Supreme Court in *Dawson v. Goff* (1954) 43 Cal.2d 310 construed the contractual provision of Code Civ. Proc. § 395 to mean the following: "The section in effect says that '* * * all actions arising on contract shall be tried in the county in which the defendant resides, or in which the contract was made, exception as only applying to 'actions arising on contract.'" (*Id.* at 314 [emphasis added]).

Plaintiffs do not assert a single cause of action for breach of contract. Plaintiffs' claims are for legal malpractice, breach of fiduciary duty, conversion, declaratory relief, constructive fraud, accounting, money had and received and violation of Penal Code § 496. (See Compl.).

Furthermore, even if Plaintiffs could establish that one or more of their claims were founded on a contract, both parties agree that "[a] defendant entitled to a change of venue as to one count in a multiple count complaint is entitled to the change as to the entire action." (*Mitchell v. Superior Court* (1986) 186 Cal.App.3d 1040, 1046; see also *Gallin v. Superior Court* (1991) 230 Cal.App.3d 541, 542-544, 546 [proper county for class action complaint "for fraud, negligent misrepresentation, unfair competition ... deceptive consumer ... and breach of contract" was the defendants' county of residence]).

Not all of Plaintiffs' claims are founded on the retainer agreement. Plaintiffs allege tort claims against Defendants for constructive fraud and conversion, and violation of Penal Code § 496 on that basis that Defendants "knowingly received, withheld, and retained funds belonging to Franz that were obtained by theft, embezzlement, or other unlawful means, and did so for their own benefit and without lawful authorization. The stolen or unlawfully obtained property included, without limitation, \$97,500 in settlement proceeds wrongfully withheld in connection with the Safeco claim and \$34,500 in additional funds obtained through unauthorized credit-card and bank charges." (Compl., ¶ 106).

Plaintiffs cite to *Hale v. Bohannon* (1952) 38 Cal.2d 458 in support of their contention that Orange County is a proper venue for these claims because the court in *Hale* held that "a debt is payable at the place where the creditor resides." (*Id.* at 467). However, the cause of action at issue in *Hale* was breach of contract. (*See id.* at 466).

Plaintiffs failed to demonstrate all of their claims are subject to the contractual obligation provision within Code Civ. Proc. § 395 (a). Accordingly, because at least one or more of the claims against

		Defendants require the action to be tried in Defendants’ county of residence, the court GRANTS the motion to transfer to Los Angeles County. Case Management Conference is continued to December 03, 2026, at 09:00 am in Department C10, if all applicable fees have been paid and case transferred – hearing will be vacated. Defendants shall give notice.
6	Doe K.N. vs. Orangewood Academy	The demurrers by Defendants Cristina Alba, Charidan Jackson, and Southeastern California Conference of Seventh-Day Adventists dba Orangewood Academy (“SCC”) are OVERRULED as to the third cause of action for intentional infliction of emotion distress of the second amended complaint by Plaintiff Jane Doe K.N. The demurrer by SCC to the fifth cause of action for negligent hiring, retention, and supervision of the second amended complaint is SUSTAINED with 20 days leave to amend. <u>DEMURRER</u> The elements of a cause of action for IIED are: “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant’s extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress. [Citation.] [¶] A defendant’s conduct is considered to be outrageous if it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. [Citations.]” (<i>Crouch v. Trinity Christian Center of Santa Ana, Inc.</i> (2019) 39 Cal.App.5th 995, 1007.) Defendant argues that Plaintiff has failed to sufficiently plead severe emotional distress. Plaintiff details the alleged conduct that caused Plaintiff IIED by each moving defendant: • “32. DEFENDANT CRISTINA M. ALBA’s choice to give plaintiff a failing grade despite plaintiff acing her final examination, refusing to change the grade despite plaintiff and her parents raising such concerns to Defendant ALBA, interfering with Plaintiff’s college scholarship eligibility were all retaliatory acts taken against plaintiff for reporting DEFENDANT MORGAN, calling minor plaintiff a liar to third parties after disclosing the sexual assault and battery done by school principal DEFENDANT MORGAN, and stating ORANGEWOOD ACADEMY would not do anything about her reports of sexual assault and battery was extreme and outrageous conduct. It is the totality of this defendant’s actions that arise to extreme and outrageous conduct, to protect Defendant Morgan by using their limited power in the classroom to retaliate against plaintiff.” (SAC, ¶ 32).

- “33. DEFENDANT CHARIDAN JACKSON’s choice to give plaintiff a failing grade despite plaintiff acing her final examination, refusing to change the grade despite plaintiff and her parents raising such concerns to Defendant JACKSON, interfering with Plaintiff’s college scholarship eligibility were all retaliatory acts taken against plaintiff for reporting DEFENDANT MORGAN, calling minor plaintiff a liar to third parties after disclosing the sexual assault and battery done by school principal DEFENDANT MORGAN, shaking her head in disagreement and rolling her eyes during Jane Doe’s statement at the board meeting, in addition to not submitting the final grade that Jane Doe earned, was extreme and outrageous conduct. It is the totality of this defendant’s actions that arise to extreme and outrageous conduct, to protect Defendant Morgan by using their limited power in the classroom to retaliate against plaintiff.” (SAC, ¶ 33).
- “36. Defendant DOE 1’s refusal to intervene and take action after Plaintiff reported Defendant MORGAN’s conduct constitutes as extreme and outrageous conduct, including but not limited to failing to comply with its mandatory reporter obligations and reporting Defendant MORGAN to law enforcement.” (SAC, ¶ 36).
- “37. Defendant DOE 1’s to intervene and take action after Plaintiff reported Defendant ALBA and JACKSON’s conduct constitutes as extreme and outrageous conduct.” (SAC, ¶ 37).

As to the conduct of the Individual Defendants, the court finds that Plaintiff’s allegations are sufficient to allege a cause of action for IIED. “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (McDaniel v. Gile (1991) 230 Cal.App.3d 363, 372). Here, Plaintiff alleges that Plaintiff reported that the school’s principal had sexually assaulted her, Alba and Jackson retaliated by falsifying Plaintiff’s grade despite Plaintiff having earned an A on her final exam but entering a zero, refused to correct the false grade even after Plaintiff and her parents raised the discrepancy directly with her. Plaintiff also alleges that this action deliberately interfered with Plaintiff’s merit-based college scholarship eligibility. Defendant Jackson then told other faculty members Plaintiff was a liar and created social isolation for Plaintiff at school. A trier of fact could reasonably infer that such conduct was an abuse of Alba and Jackson’s position, used to damage Plaintiff’s interest, that Plaintiff was susceptible to mental distress and that social isolation and the loss of a merit-based college scholarship would cause mental distress to a teenager.

As to defendant SCC, as the court previously found, Plaintiff's allegations against Morgan were sufficient to constitute sexual assault, sexual battery, and/or battery. What constitutes reasonable suspicion and whether or not SCC breached its duty to investigate, take Plaintiff's allegations seriously, and/or reprimand/terminate Morgan is a question of fact that cannot be decided on demurrer. "Those allegations and facts reasonably inferred from them are sufficient to impose vicarious liability against [SCC] for [Morgan's] conduct. Under the respondeat superior doctrine, an employer is liable for the torts of its employees committed within the scope of employment." (*Crouch v. Trinity Christian Center of Santa Ana, Inc.* (2019) 39 Cal.App.5th 995, 1011). Further, where an entity acts recklessly with the intent to harm a minor so that the minor would not report to the police or news media, that raises sufficient questions of fact to constitute IIED. (*Id.* at 1011). Here, Plaintiff reported an incident that, if proven true, would foreseeably cause Plaintiff, a teenage minor, mental distress. SCC's conduct, which favored the interest of Morgan and abandoned Plaintiff's could be inferred by a jury to be outrageous conduct.

Defendants' reliance on *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55 is misplaced. In *Janken*, the court first discussed the difference between harassment claims under FEHA and age discrimination claims under FEHA. (*Id.* at 64). Harassment claims are based on a type of conduct that is avoidable and unnecessary to job performance. (*Id.*) Discrimination claims, by contrast, arise out of the performance of necessary personnel management duties. (*Id.* at 63.) As such, "[m]aking a personnel decision is conduct of a type fundamentally different from the type of conduct that constitutes harassment. Harassment claims are based on a type of conduct that is avoidable and unnecessary to job performance." (*Id.* at 64). "[C]ommonly necessary personnel management actions such as hiring and firing, job or project assignments, office or work station assignments, promotion or demotion, performance evaluations, the provision of support, the assignment or nonassignment of supervisory functions, deciding who will and who will not attend meetings, deciding who will be laid off, and the like, do not come within the meaning of harassment." (*Id.* at 64-65). Based on this reasoning, the court held that managing personnel that may result in age discrimination "is not outrageous conduct beyond the bounds of human decency, but rather conduct essential to the welfare and prosperity of society." (*Id.* at 80).

The narrow reasoning in *Janken* does not apply here. The conduct alleged is not purely managerial personnel decisions that may result in discrimination. Rather, here, the conduct alleged involved falsifying grades, preventing Plaintiff from obtaining a merit-scholarship, mocking Plaintiff, and being a participant creating social isolation for Plaintiff go beyond mere personnel decisions.

The demurrers to the third cause of action are OVERRULED.

**Fifth Cause of Action for Negligent Hiring, Retention, or Supervision—
SCC Only**

		The theory of negligent supervision may be applied to impose liability on a religious organization for childhood sexual abuse, assuming that the general requirements for this cause of action are met. (<i>Mark K. v. Roman Catholic Archbishop</i> (1998) 67 Cal.App.4th 603.) Negligence liability will be imposed on an employer if it knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes. (<i>Brown v. USA Taekwondo</i> (2019) 40 Cal. App. 5th 1077.) Defendant SCC argues that the SAC is silent as to the notice and timeline of the allegations that defendants Morgan, Alba, and/or Jackson were unfit or incompetent prior to being hired by SCC. Defendant further argues that the SAC does not allege that SCC had any prior knowledge of the employee's unfitness. (See <i>Z.V. v. County of Riverside</i> (2015) 238 Cal. App. 4th 889, 902 ("To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act.")) The court agrees that the SAC does not cure these defects. It is unclear when the complaints were made and whether or not the cause of action is based on negligent retention only (i.e., retaining Morgan, Alba, and Jackson after complaints were made) and/or whether or not the cause of action encompasses negligent hiring (to which extent, the allegations are unclear that Defendant had knowledge of any complaints prior to hiring. As such, Plaintiff fails to allege, at what time Defendant Morgan, Alba, and Jackson allegedly became incompetent/unfit, whether or not that time period occurred before or after Plaintiff's claimed harm, and when/what particular risk or hazard and/or particular harm materialized. For this reason, the demurrer is SUSTAINED with 20 days leave to amend as to the fifth cause of action as against SCC. Moving Defendants to give notice.
7	Corey vs. The Regents of the University of California	Defendants Regents of the University of California and Angela Myer, M.D. demur and move to strike portions of the First Amended Complaint filed by Plaintiff Jacie Ruelas Corey. For the following reasons, the demurrer is SUSTAINED WITH LEAVE TO AMEND. Plaintiff shall file her Second Amended Complaint by September 10, 2026. In light of this ruling, Defendants' motion to strike is rendered moot. On February 2, 2026, Plaintiff filed a document entitled "Amended Complaint [¶] My First Amended Complaint." However, this First Amended Complaint does not assert any causes of action. CRC Rule 2.112 requires:

Each separately stated cause of action, count, or defense must specifically state:

- (1) Its number (e.g., “first cause of action”);
- (2) Its nature (e.g., “for fraud”);
- (3) The party asserting it if more than one party is represented on the pleading (e.g., “by plaintiff Jones”); and
- (4) The party or parties to whom it is directed (e.g., “against defendant Smith”).

Failure to comply with CRC Rule 2.112 renders a complaint subject to special demurrer for uncertainty. (*Grappo v. McMills* (2017) 11 Cal.App.5th 996, 1014 [“failure to comply with rule 2.112 presumably renders a complaint subject to a motion to strike (Code of Civ. Proc., § 436), or a special demurrer for uncertainty.”].)

Plaintiff’s First Amended Complaint contains an attachment stating that Plaintiff amends certain allegations, but “all other allegations remain the same.” However, an “amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment.” (*State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131.)

The original complaint ceases to have any effect and Plaintiff cannot rely on the allegations of the original complaint to assert a viable cause of action in the First Amended Complaint. Further, the First Amended Complaint does not assert any viable cause of action against Defendants.

Case Management Conference is continued to December 03, 2026, at 09:00 am in Department C10.

Defendants shall give notice of this ruling.